

Notification of Religious Institutions Rules

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State of Tamilnadu- Act

Notification of Religious Institutions Rules

TAMILNADU

India

Notification of Religious Institutions Rules

Act 647 of 1960

Published on 22 November 1960

Commenced on 22 November 1960

[This is the version of this document from 22 November 1960.]

[Note: The original publication document is not available and this content could not be verified.]

Notification of Religious Institutions Rules

Published vide Notification No. G. O. MS. NO. 4793, Revenue, dated 22nd November, 1960 - SRO No. A-647 of 1960

Original rules published in Part V of the Fort St. George Gazette, dated 7th December 1960 (Page 610).

G. O. MS. NO. 4793, Revenue, dated 22nd November, 1960 - SRO No. A-647 of 1960. - In exercise of the powers conferred by sub-section (1) and clause (i) of subsection (2) of section 116 read with subsection (1) of section 71 and subsection (2) of section 72 of the Tamil Nadu Hindu Religious and Charitable Endowments Act, 1959 (Tamil Nadu Act 22 of 1959), the Governor of Tamil Nadu hereby makes the following Rules, namely:-

1.

These Rules may be called the Notification of Religious Institutions Rules.

2.

(1)

The notice referred to in sub-section (1) of section 71 of the Act shall be sent by registered post acknowledgement due-
(a)

to the trustee or trustees concerned:

Provided that where the religious institution has an Executive Officer or Manager appointed under any provisions of the Act or under the provisions of a scheme settled or deemed to have been settled under the Act, the notice shall also be served on him in the manner laid down in this Rule; and

(b)

to such other persons having interest in the religious institution as the Commissioner may deem necessary.

(2)

A copy of the notice shall be published by affixture-

(a)

on the notice board of the office of the Assistant Commissioner in whose division, the institution concerned is situate and of the office of the [Joint Commissioner or Deputy Commissioner]

[Substituted by G O. Ms. No. 275, C. T. & R. E., dated the 16th July 1997.]

;

(b)

on the notice board or the front door of the institution concerned;

(c)

on the notice board of the office of the Municipal Council including the Corporation of [Chennai]

[Substituted for the word 'Madras' by the City of Madras (Alteration of Name) Act, 1996 (Tamil Nadu Act 28 of 1996).]

or village chavadi and, if there is no village chavadi, some other public place in the village in which the institution is situate; and

(d)

in any other conspicuous place in the locality which may be selected by the Commissioner in his discretion:

Provided that where the proposal is in respect of a specific endowment, the properties of which are not situate in the municipality including the Corporation of [Chennai]

[Substituted for the word 'Madras' by the City of Madras (Alteration of Name) Act, 1996 (Tamil Nadu Act 28 of 1996).]

or the village in which the temple or math is situated, the notice shall also be published in the manner aforesaid in the places in which the properties are situate.

(3)

A copy of the notice shall also be published in one or more daily newspapers having circulation in the locality in which the institution is situated.

3.

The enquiry under section 72(2) shall be conducted in the manner prescribed for conducting enquiries by the Commissioner or the [Joint Commissioner or Deputy Commissioner]

[Substituted by G. O. Ms. No. 275, C. T. & R. E., dated the 16th July 1997.]

under sections 63 to 72.

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